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CMA Board Approval: April 14, 2025
Effective date: May 1, 2025

COOLFONT MOUNTAINSIDE ASSOCIATION GROUP RENTAL HOUSING POLICY RESOLUTION POLICY RESOLUTION 2025-04

Authority

WHEREAS, Coolfont Mountainside Association (hereafter CMA) is a "preexisting common interest community" and a "planned community" as defined by W. Va. § 36B-1-103 subsections (7) and (23) and is vested with the powers set forth in § 36B-3-102 thereof including the power to adopt rules and regulations; and

WHEREAS, this Board of Directors is authorized to act on behalf of the Association in adopting rules and regulations under W. Va. Code § 36B-3-103(a); and

WHEREAS, the CMA Declaration of Covenants and Restrictions, Article VI, § 1 Restriction Against Business Use provides that construction of improvements and their use within the CMA shall be limited to single family residential homes on single lots and no commercial use shall be made of any lot. Notwithstanding the above, rental use of homes on a daily or longer basis, and the use of such residential homes for artistic endeavors, crafts or a home business shall be permitted subject to rules and regulations established by a two third (⅔) majority vote of all the Members; and

WHEREAS, the CMA Declaration of Covenants and Restrictions, Article IX, § 3 provides for the enforcement of these covenants and restrictions by any proceeding at law or in equity against any person or persons violating or attempting to violate any covenant or restriction, either to restrain violation or to recover damages, and against the land to enforce any lien created by these covenants; and failure by the Association or any Owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter; and

WHEREAS, the CMA Bylaws, Article 5, § 5.2 requires that the Board shall make and publish rules and regulations, not inconsistent with the Articles, the Covenants, or law for the use and enjoyment of, and the imposition of penalties with respect thereto, the Common Properties by members, immediate family of members, guests, and tenants; such rules and regulations shall include procedures to assure any penalties shall not be arbitrary or unreasonable and provide a mechanism for appeal; and Section 5.3 states after the Board has adopted and published such rules and regulations, if the personal conduct of any member, guest, or tenant violates such the

133 BOBCAT DRIVE
BERKELEY SPRINGS WV 25411-6752

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Board may suspend the rights of any such person and the responsible member; and

WHEREAS, the CMA Bylaws, Article 5, § 5.3 provides that after the Board has adopted and published such rules and regulations, if the personal conduct of any Member, guest, or tenant violates such rules and regulations, the Board may, in accordance with Section 5.2, suspend the rights of any such person and of the responsible Member;

WHEREAS, the CMA Bylaws, Article 8, § 8.1 (d) authorizes the Board to adopt and publish the rules and regulations, including fees, if any, governing the use of the Common Properties and facilities; and

WHEREAS, the Common Properties include the common recreational facilities and the water system,, thereby vesting the Association with the authority to suspend use of the water system by a Member during any period in which such Member is delinquent in the payment of any assessment or usage fee levied by the Association, subject to the rules of the West Virginia Public Service Commission, and after notice and opportunity for hearing before the Board. Likewise, a Member's use of the common recreational facility may be suspended for infraction of the published rules and regulations of the Association established pursuant to Article 5; and

WHEREAS, the CMA Rules and Regulations Regarding the Use of Property (hereafter RRRUP), Article 1.1 provides Lots within the CMA are designated in the Declaration of Covenants and Restrictions for development as "single family residential homes on single lots;" and

WHEREAS, the CMA RRRUP, Article. 2.1 Definitions states (Dwelling, single family) A main building containing not more than one dwelling unit and used exclusively as a residence for a single family,
Such dwelling may be occupied by not more than a single family (which definition shall not be deemed to exclude additional occupancy resulting from occasional overnight guests of the single family or co-owners).
Tenant (rental) use of houses consistent with the above single family occupancy requirements, leased on other than a daily basis, and not open to the general public, shall be considered to conform to this definition. Such rental shall be also subject to a maximum occupancy (total occupancy) which does not exceed the number of bedrooms times two persons; and

WHEREAS, the CMA RRRUP, Article 3.3 provides the following uses and structures are prohibited: Multi-family residential uses including guest houses and apartment buildings; and

WHEREAS, the CMA RRRUP, Article 4.1 provides that pursuant to authority of these Regulations, the Board is authorized to grant special exceptions, as provided herein, where, in the judgment of the Board, those special exceptions will be in harmony with the general purpose and intent of the Regulations and will not tend to adversely affect the use of neighboring property, subject in each case to the special conditions specified in this article.

The fact that an application complies with all specific requirements and purposes set forth herein shall not be deemed to create a presumption that the application is, in fact, compatible with surrounding land uses and, in itself, shall not be sufficient to require the granting of any application. The applicant for a special exception shall have the burden of proof which shall include the burden of going forward with the evidence and the burden of persuasion on all questions of fact which are to be determined; and

WHEREAS, the CMA RRRUP, Article. 4.3.1 provides that while the CMA regards permanent residency as the greatest support and enhancement of both the community and property values, and the best source of security, the history of the community evidences the prevalence of second home development, and the desirability of rental occupancy and activity in preference to vacant homes and lots.
It is the purpose of the CMA in allowing a special exception for group rental housing, to foster occupancy of homes and activity within the lands of the CMA., while protecting the character of the community;

WHEREAS, the CMA RRRUP, Article 4.3.3 provides that occupancy shall conform to the category of use approved. Rentals shall be for a maximum period of two (2) weeks but not less than two (2) days. The residence shall provide a quantity of bedrooms, toilet and bath facilities, kitchen and living space areas and seating commensurate with the occupancy limit requested in the application for a special exception as determined by the Board. The use of living spaces as multi-use living/sleeping areas will not be permitted in the determination of permitted occupancy. For purposes of determining occupant capacity, bedroom occupancy will be restricted to a maximum of 2 persons per bedroom.
On-site parking shall be adequate for the proposed occupancy, and in accordance with other provisions of these regulations. At all times, current CMA rules with regard to group rental occupancy will be observed and such rules shall be posted in a conspicuous location. Such rules shall include such provisions as designation of quiet hours, prohibition of open fires, parking requirements, and maximum occupancy.
Group rental houses shall not be detrimental to the use and peaceful enjoyment of surrounding properties or the general community, and shall cause no objectionable noise, traffic or other adverse impacts. Accordingly, the Board may impose additional restrictions or conditions as are deemed appropriate to the purpose of this article and the specific location and character of the residence and lot.

Purpose

WHEREAS, to promote the peaceful enjoyment of all CMA properties and common lands, the Board hereby establishes enforcement policies and procedures in accordance with the CMA Covenants and Restrictions, Bylaws, and Rules and Regulations so that it may fairly and consistently enforce the governing documents and ensure the public health and safety of all owners, guests, tenants, lessees, occupants, invitees, and any other persons occupying the premises of the CMA owners; and

WHEREAS, to limit the adverse effects on neighboring properties and the common lands, the detriment to the use and peaceful enjoyment of surrounding properties, and to preserve the character of the CMA community, the Board hereby establishes enforcement policies and procedures for Group Rental Housing.

Scope and Intent

WHEREAS, it is the intent that this resolution be applicable to all owners, guests, tenants, lessees, occupants, invitees, and any other persons occupying the premises of the CMA owners or using the common properties, facilities, or amenities included thereby.

This policy resolution 2025-04 is based on the CMA Bylaws, CMA Declaration of Covenants and Restrictions, and rules and regulations enacted by the CMA RRRUP enacted 01/01/1989, and shall remain in effect until otherwise rescinded, modified, or amended by a majority of the Board of Directors and recorded in the Morgan County, WV Clerk's Office.

In an effort to maintain the peaceful enjoyment and natural environment of the Association and to most closely conform to the character and use of a quiet single family community, the Board may need to limit the number of homes that can operate under the Group Rental Housing exception.

Specifications

THEREFORE, be it resolved that the Board of Directors hereby adopts the following Group Rental Housing policy:

1. It is a violation for a business/commercial entity or an individual(s) to own/offer a property for use solely or predominantly as a "short-term rental unit" and exclusively as an investment property. As used herein, "short-term rental" and "short term rental unit" means a unit regularly rented on a daily or weekly basis but the term does not include leases for 6 months or more nor does it include month to month rentals requiring a full month's advance notice to terminate.
2. It is a violation to offer, advertise, charter, lease, let, rent, or license a property for the purpose of short-term rental, without a special exception for Group Rental Housing granted by the Board. (Prohibited Uses of Property, 1989 RRRUP, Art. 3.3)
3. It is a violation to offer, advertise, charter, lease, let, rent, or license a property for the purpose of Group Rental Housing without a WV Business License and a WV Registration Certificate filed with the WV Tax Department. The owner(s) must comply with all state and local tax laws and zoning regulations.
4. It is a violation to offer, advertise, charter, lease, let, rent, or license a property for the purpose of Group Rental Housing without an annual health permit, per the WV General Sanitation Rule. (WV Code R §64-18)

5. It is a violation to offer, advertise, charter, lease, let, rent, or license a property for Group Rental Housing that exceeds the maximum occupancy of ten (10) persons. For determination of maximum occupant capacity, bedroom occupancy is restricted to a maximum capacity of 2 persons per bedroom.[1]
   The use of living spaces/common areas as multi-use living/sleeping areas is not permitted in a determination of occupancy.
6. It is a violation to park more than five (5) vehicles on site (Excess vehicles may be parked by the recreation area/sports courts). On-site parking shall be adequate for the determined maximum occupancy.
7. It is a violation to offer, advertise, charter, lease, let, rent, or license a property for Group Rental Housing without posting all current CMA rules including, but not limited to, regard for occupancy restrictions, parking restrictions, prohibition of open fires, pet policies, designation of quiet hours, noise policies, firearms and hunting restrictions, fireworks restrictions, and trash/garbage policies in a conspicuous location in the residence. (RRRUP 4.3.3 General Provisions)
8. The owner(s) shall maintain the names and contact information of guests for a period of one (1) year and upon request by the Board, provide that information for the dates requested.
9. It is a violation to offer, advertise, charter, lease, let, rent, or license a property for more occupancy than the water, septic, and effluent service can reasonably accommodate per IBC/IRC guidance and WV DEP regulations and permits. The owner is responsible for compliance with all applicable codes and regulations, including the CMA Septic System Maintenance Policy Resolution, regarding sewer and septic equipment and systems. Further, the Board, in issuing a special exception for Group Rental Housing, must consider the capability of the CMA effluent collection system to process wastewater should all properties be similarly occupied.

These Rules shall remain in effect until otherwise rescinded, modified, or amended by a majority vote of the Board and recorded in the Morgan County, WV, Clerk's Office.

[1]Until Morgan County adopts a building code, the DACC recommends, in the interest of quality and safety, that the owner include as a part of the contract with the builder and/or contractor the requirement that construction conform to a recognized national model code such as the current edition of the International Residential Code (IRC) 2023. The IRC requirements for a bedroom include: a floor area of not less than 70 square feet (§R304.1), and every bedroom occupied by more than one person shall contain not less than 50 square feet of floor area for each occupant, with no less than 7 ft. in any horizontal direction (§R304.2), and required ceiling heights (§R304.3). The IRC also requires that bedrooms have at least one emergency escape and rescue opening that: opens directly onto a street or yard (§R310.1). Windows used as emergency escapes must: have a clear opening area of 5.7 sq. ft., minimum height of 24 inches, a minimum opening width of 20 inches, and must be no more than 44 inches from the floor (§R310.2.1 through §R310.2.3). The IRC also references required doors used as an emergency escape (§R310.3).

Application

An owner(s) may apply to the Board for a special exception for a non-conforming Group Rental Housing (GRH) use of property and the Board will respond within 30 calendar days.
The owner must complete and submit an Annual GRH Registration Packet that will include a newly signed CMA GHR Application Form, any/all required fees at time of registration, and current copies of the property's WV Business License, WV Business Registration Certificate (from WV State Tax Department), and annual WV Health Permit.

Enforcement

This Enforcement section is consistent with the General Enforcement Policy Resolution 2025-02. The Board of Directors may amend and further develop these guidelines from time to time.

Upon receipt of information that a violation of the covenants, rules and regulations, policy resolutions, and/or DACC guidelines has occurred, the responsible owner will be notified of such violation by USPS Priority Mail and/or email to the last known address of the member or owner of record in the records of CMA. (C&Rs General Provisions § 2) It shall be the duty of each owner of a lot to provide the Association with a current address.

1. On receipt of a written complaint of an alleged violation, the Board and/or its designee(s) will investigate the violation within seven (7) calendar days of receipt of such complaint. If it is determined by such investigation a violation has occurred, the Board will take the following actions:
    a. Issue a "Notice of Violation Letter" by USPS Priority Mail and/or email, notifying the owner of an alleged violation, setting forth the details of the violation and requesting corrective action be taken within twenty (20) calendar days of the date of the email/postmark of the letter. The letter will set forth the rule violated, the possible fine(s) imposed, and give the owner the opportunity to appeal at a hearing with the Board. The Board will schedule a hearing within fifteen (15) calendar days of the owner's request for a hearing. Upon an owner's request for a hearing, any fines levied against the owner will be held in abeyance until the appeal is heard by the Board.
    b. If no corrective action has been taken or a request for hearing or other contact has not been received within the stated twenty (20) calendar days of the Notice of Violation Letter, the Board will email/mail the owner a "Notice of Hearing" on the issue of whether to impose discipline in connection with the alleged violation. The hearing will take place at a meeting (virtual or in-person) of the Board at which a quorum of the Board may be present. The hearing will commence with a recital of the reasons the Board determined a violation occurred. The owner (virtual or in-person) may then provide evidence (in writing or orally) and present witnesses with direct knowledge of the alleged infraction. The Board, having performed its own investigation and presented its own evidence, is not required to identify the

person(s) who brought the matter to the Board's attention. Within seven (7) calendar days after the hearing, the Board will provide written notice to the owner of its decision. If the Board decides to impose a penalty it will be specified in the letter, and the date by which compliance is required.

c. If the owner fails to appear for a scheduled hearing, the Board will consider evidence presented in connection with the investigation, and will determine whether or not a violation occurred. If the Board determines a violation occurred, the Board will determine what disciplinary action, if any, to impose.

2. The following are not considered disciplinary actions and do not require a hearing before imposition:
   a. Notice of Violation letters
   b. Legal proceedings
   c. Entrance onto a property to remedy a health or safety emergency
   d. Towing of vehicles improperly parked in common areas or on roads or obstructing emergency vehicles
3. Violations that are continuous in nature may result in the imposition of periodic successive fines as described in the Schedule of Fines, Fees and Charges without further hearings by the Board. In each case where a periodic fine is assessed, the periodic fine will commence the day after the hearing in which it is determined to assess the fine for a continuous violation.
4. Owners are required to notify the CMA Board by mail or email upon the correction of any alleged violation so that the Board or its representative may inspect and verify the correction. Once the board verifies and acknowledges the correction was taken, only then is the violation considered closed.
5. The Board may, at any time it deems appropriate, file a civil action to obtain compliance with the governing documents, rules and regulations, and design guidelines: the Board need not issue a violation and/or fine an owner first. In a court action, the Board may seek injunctive relief and/or recovery of fines.
6. When violations are committed by tenants or guests of the owner, the owner is responsible for the violations. The notice of hearing will be sent to the owner, although the Board may send a copy of the notice to the tenant as well. For purposes of receipt of Notices, such notices will be mailed to the owner at the property address by USPS certified mail or priority mail and email to the last known address of the member or owner of record in the records of CMA.
7. A member who is in continuous violation is considered a "member not in good standing," and shall not have the right to serve on, or seek election to the Board, Committees, or Task Forces as long as the violation continues.
8. The Board has an array of penalties that may be imposed, after notice and opportunity for hearing, including, but not limited to suspending the member's right to use the common recreational facilities or water system (subject to the rules of the West Virginia Public Service Commission), as established in CMA Bylaws Article 5 Property Rights and Rights of Enjoyment of Common Property. The rights and privileges of members not in good standing shall be suspended as long as the violation continues.

9. The Board has an array of penalties that may be imposed, after notice and opportunity for hearing, including, but not limited to suspending the member's right to vote. The rights and privileges of members not in good standing shall be suspended as long as the violation continues.
10. The Board may direct an attorney to file suit for fine(s) due that have not been paid, and for attorney's fees should the member(s) in violation fail to pay the fine(s). The legal fees and expenses incurred and any unpaid fine(s) shall constitute a lien upon the property of the owner/member who is in violation. The enforcement procedures herein set forth are in addition to and do not supplant the remedies available at law or in equity to the Association or any member thereof for a violation of the restrictive covenants, including the right to seek immediate relief through court proceedings.

These Rules shall remain in effect until otherwise rescinded, modified, or amended by a majority vote of the Board and recorded in the Morgan County, WV, Clerk's Office.

COOLFONT MOUNTAINSIDE ASSOCIATION
POLICY RESOLUTION 2025-04 ACTION RECORD

Duly adopted at a meeting of the Board of Directors held on: April 14, 2025

Motion by: Iris Melton Seconded by: Steve Katz

VOTE:

	YES	NO	ABSTAIN	ABSENT
President, Steve Katz	X			
Vice President, Norm Rosenberg	X			
Treasurer, Dawne Holz				X
Secretary, Valerie Creason	X			
Director, Dave Creason	X			
Director, Iris Melton	X			
Director, Jack Wennersten				X

ATTEST:

Valerie Lm Creason
Secretary

04/15/2025
Date

Resolution effective date: May 1, 2025